

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUPA065160: JONATHAN TRIVAS vs GERARDO VENTURA

07/16/2026 in Department 41

Petition to Compel Arbitration

Motion: Petitioner Jonathan Trivas’s Petition to Compel Arbitration

Tentative Ruling:

Petitioner Jonathan Trivas’s Petition to Compel Arbitration is DENIED. (Code Civ. Proc., § 1281 et seq.)

The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.) A written provision in a contract to submit to arbitration for a dispute contemplated by the contract is valid, irrevocable and enforceable except on “such grounds as exist at law or in equity for the revocation of any contract.” (9 United States Code, § 2 [contracts subject to the Federal Arbitration Act (FAA)]; Code Civ. Proc., § 1281 [contracts governed by state arbitration law].) Thus, the existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; see also *Kinney v. United Health Care Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.)

“There are circumstances in which nonsignatories to an agreement containing an arbitration clause can be compelled to arbitrate under that agreement. As one authority has stated, there are six theories by which a nonsignatory may be bound to arbitrate: ‘(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.’ [Citations].” (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.) In *Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 418, the court found that an agent is entitled to claim the benefit of arbitration even if not a signatory. In *Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 865, the court found that the same applied to the principal or the guarantor.

There is no dispute that Respondents are not a party to the arbitration agreement at issue. Accordingly, Petitioner relies on the argument that Respondents must be compelled to arbitrate under an agency theory. However, as correctly noted by Respondents, they are not agents, alter egos, or third-party beneficiaries.

Further, it does not appear that equitable estoppel applies. the facts of this case are different than those asserted in *DMS Services, LLC v. Sup. Ct.* (2012) 205 Cal.App.4th 1346. “Under this theory, ‘ “a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately

founded in and intertwined’ with the underlying contract obligations.” ’ [Citations.] The reason for this equitable rule is plain: One should not be permitted to rely on an agreement containing an arbitration clause for its claims, while at the same time repudiating the arbitration provision contained in the same contract.” (*DMS Services, LLC v. Superior Court* (2012) 205 Cal.App.4th 1346, 1354; see also *Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 20 [the purpose of the equitable estoppel doctrine is “‘...to prevent a party from using the terms or obligations of an agreement as the basis for his claims against a nonsignatory, while at the same time refusing to arbitrate with the nonsignatory under another clause of that same agreement.’”].) Thus, the Court also finds that the equitable estoppel does not apply.

Ultimately, Petitioner has failed to meet his burden of establishing the existence of an arbitration agreement binding Respondents. Accordingly, the Petition to Compel Arbitration is hereby denied.

Counsel for Respondents to give notice of this Court’s ruling.